

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jayvee Rhoda	Team: Squad #10	CCRB Case #: 201510889	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 12/29/2015 10:00 PM	Location of Incident: Avenue N and East 87th Street; 69th Precinct stationhouse	Precinct: 69	18 Mo. SOL 6/29/2017	EO SOL 6/29/2017	
Date/Time CV Reported Wed, 12/30/2015 9:44 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 12/30/2015 9:44 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Daniel Guida	5358	941862	069 PCT
2. POM Ryan Courten	03855	948818	069 PCT
3. POM Matthew Krauszer	24261	952950	069 PCT
4. POM Louis Villegas	22408	953533	069 PCT
5. POM Alexis Bruno	20005	952502	069 PCT
6. An officer			069 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Daniel Guida	Abuse: At Avenue N and East 87th Street, in Brooklyn, Sgt. Daniel Guida stopped the vehicle in which § 87(2)(b) was an occupant.	
B.SGT Daniel Guida	Abuse: At Avenue N and East 87th Street, in Brooklyn, Sgt. Daniel Guida frisked § 87(2)(b)	
C. An officer	Abuse: At Avenue N and East 87th Street, in Brooklyn, an officer frisked § 87(2)(b)	
D. An officer	Abuse: At Avenue N and East 87th Street, in Brooklyn, an officer frisked § 87(2)(b)	
E.POM Ryan Courten	Abuse: At Avenue N and East 87th Street, in Brooklyn, PO Ryan Courten searched the vehicle in which § 87(2)(b) was an occupant.	
F.SGT Daniel Guida	Off. Language: At Avenue N and East 87th Street, in Brooklyn, Sgt. Daniel Guida made remarks to § 87(2)(b) based upon race.	
G.SGT Daniel Guida	Abuse: At Avenue N and East 87th Street, in Brooklyn, Sgt. Daniel Guida threatened to arrest § 87(2)(b)	
H.POM Ryan Courten	Abuse: At Avenue N and East 87th Street, in Brooklyn, PO Ryan Courten refused to provide his name to § 87(2)(b)	
I.POM Matthew Krauszer	Abuse: At Avenue N and East 87th Street, in Brooklyn, PO Matthew Krauszer refused to provide his name to § 87(2)(b)	
J.POM Louis Villegas	Abuse: At Avenue N and East 87th Street, in Brooklyn, PO Louis Villegas refused to provide his name to § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
K.POM Alexis Bruno	Abuse: At Avenue N and East 87th Street, in Brooklyn, PO Alexis Bruno refused to provide his name to § 87(2)(b)	
L.SGT Daniel Guida	Force: At the 69th Precinct stationhouse, Sgt. Daniel Guida used physical force against § 87(2)(b)	

Case Summary

On December 30, 2015, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System. On December 29, 2015, at approximately 10:00 p.m., § 87(2)(b) was driving his vehicle with his friends § 87(2)(b) and § 87(2)(b). § 87(2)(b) was going to drop off § 87(2)(b) and § 87(2)(b) at their homes. On Avenue N and East 87th Street, in Brooklyn, § 87(2)(b) was pulled over by Sgt. Daniel Guida of the 69th Precinct (**Allegation A**). § 87(2)(b) denied committing any VTL violations. PO Ryan Courten, PO Alexis Bruno, PO Matthew Krauszer, and PO Louis Villegas of the 69th Precinct were also present at the scene. Sgt. Guida asked § 87(2)(b) to step out of his vehicle and allegedly frisked him (**Allegation B**). An officer also allegedly frisked § 87(2)(b) and § 87(2)(b) (**Allegations C and D**). PO Courten allegedly searched § 87(2)(b)'s vehicle and recovered four fraudulent credit cards belonging to § 87(2)(b) (**Allegation E**). Sgt. Guida allegedly said to § 87(2)(b) "I can say you were doing dope and get away with it, nigga," and, "I can do what I want, nigga." (**Allegation F**) Sgt. Guida also allegedly threatened to arrest § 87(2)(b) and take him to the stationhouse (**Allegation G**). § 87(2)(b) was arrested for § 87(2)(b). As the officers were leaving, § 87(2)(b) asked all of them for their names. Sgt. Guida provided his name, but PO Courten, PO Bruno, PO Krauszer, and PO Villegas allegedly refused to provide their names (**Allegations H, I, J, and K**). § 87(2)(b) went to the 69th Precinct stationhouse to inquire about § 87(2)(b) and Sgt. Guida told him to leave and allegedly pushed § 87(2)(b) on his back (**Allegation L**). § 87(2)(b) left the stationhouse and he was not arrested or summonsed. § 87(2)(g)

Mediation, Civil, and Criminal Histories

§ 87(2)(b) rejected mediation. On March 22, 2016, the NYC Comptroller's Office confirmed that a notice of claim was not filed in connection with this incident (See Board Review 1). § 87(2)(b) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer Histories

- § 87(2)(b) currently has one other open CCRB case § 87(2)(b).
§ 87(2)(b).
- Sgt. Guida has been a member of the service for nine years and has been the subject in six CCRB complaints filed against him involving 17 allegations. One of those complaints, CCRB case number 201600368, is currently open. There are no substantiated CCRB allegations against Sgt. Guida. § 87(2)(g)
- PO Courten has been a member of the service for five years and this is the first CCRB complaint that has been filed against him.

- PO Bruno has been a member of the service for three years and has been the subject in three CCRB complaints filed against him involving eight allegations. There are no substantiated CCRB allegations against PO Bruno. § 87(2)(g)
- PO Krauszer has been a member of the service for three years and has been the subject in one CCRB complaint filed against him involving two allegations, none of which were substantiated. § 87(2)(g)
- PO Villegas has been a member of the service for three years and has been the subject in three CCRB complaints against him involving four allegations. One of those complaints, CCRB case number 201600368, is currently open. There are no substantiated allegations against PO Villegas. PO Villegas has one prior refusal to provide name/shield allegation, in case number 201507197, which was closed as Unsubstantiated.

Findings and Recommendations

Explanation of Subject Officer Identification

Sgt. Guida, PO Courten, PO Bruno, PO Krauszer, and PO Villegas all acknowledged interacting with § 87(2)(b) § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

Recommendations

Allegation A- Abuse of Authority: At Avenue N and East 87th Street, in Brooklyn, Sgt. Daniel Guida stopped the vehicle in which § 87(2)(b) was an occupant.

It is not in dispute that § 87(2)(b)'s vehicle was stopped by officers. § 87(2)(g)

§ 87(2)(b) testified that he was driving to drop § 87(2)(b) and § 87(2)(b) off at their homes when he saw someone whom he knew from the neighborhood. § 87(2)(b) stopped his vehicle to greet the individual, whose name he did not know. § 87(2)(b) gave the individual a high-five type greeting, but did not exchange any objects with him. Their interaction lasted approximately five seconds and § 87(2)(b) remained inside his vehicle the entire time. § 87(2)(b) then continued driving, making a complete stop at the stop sign at the corner and using his turn signal when he made a left turn at the corner. § 87(2)(b) did not commit any VTL violations. When § 87(2)(b) made the left turn, he was immediately stopped by Sgt. Guida, who was in an unmarked police vehicle (See Board Review 4).

§ 87(2)(b) was uncooperative with the investigation by refusing to provide a statement and schedule an appointment, despite multiple contact attempts. The investigation was unable to get

in contact with § 87(2)(b) who was unresponsive to multiple contact attempts. For a detailed summary of contact attempts to § 87(2)(b) and § 87(2)(b) please See Board Review 5.

Sgt. Guida testified that he was in his unmarked vehicle when he observed § 87(2)(b) vehicle stopped on the side of the road. Sgt. Guida was conducting routine patrol and happened to see § 87(2)(b) s vehicle ahead of him as he was traveling northbound on East 87th Street. There were three occupants in the vehicle, including § 87(2)(b) speaking with two males standing in the street. One of the males in the street spotted Sgt. Guida's vehicle and both males ran into an adjacent house. § 87(2)(b) who was driving, pulled off at a high rate of speed and drove past a stop sign at the corner without stopping. § 87(2)(b) also turned left at the corner without using a turn signal. Sgt. Guida proceeded to stop § 87(2)(b) s vehicle. Sgt. Guida exercised his discretion and chose not to issue any VTL summonses to § 87(2)(b) because they made a felony arrest of § 87(2)(b) (See Board Review 6).

PO Krauszer testified that he first observed § 87(2)(b) in a vehicle that was double parked on East 87th Street. There were two males standing outside § 87(2)(b) s vehicle, speaking with the occupants of the vehicle. As PO Krauszer was driving slowly down the street, the two males standing outside caught sight of PO Krauszer's police vehicle. The two males immediately ran into a house, which PO Krauszer deemed to be suspicious. § 87(2)(b) pulled off at a high rate of speed, and when he approached the intersection, he failed to stop at the stop sign. § 87(2)(b) turned left onto Avenue N without using his turn signal. PO Krauszer proceeded to activate his turret lights and pull § 87(2)(b) s vehicle over. § 87(2)(b) was eventually released without a VTL summons because the officers were satisfied that a felony arrest of § 87(2)(b) had been made (See Board Review 7).

PO Bruno testified that he observed § 87(2)(b) s vehicle double parked on East 87th Street. There was an unknown male standing outside § 87(2)(b) s vehicle, who saw PO Bruno's vehicle as he was driving down the block. The individual quickly said something to the occupants of § 87(2)(b) s vehicle before running inside a house that was adjacent to § 87(2)(b) s vehicle. § 87(2)(b) s vehicle pulled off and failed to stop at a stop sign at the intersection, upon which the officers in PO Bruno's vehicle executed a vehicle stop of § 87(2)(b) s vehicle. PO Bruno did not recall whether § 87(2)(b) committed any other VTL violations (See Board Review 8).

PO Courten testified that his first observation of § 87(2)(b) s vehicle was seeing his vehicle drive past a stop sign at the intersection without stopping. PO Courten did not observe the vehicle commit any other VTL violations. PO Courten did not observe § 87(2)(b) greet an individual in the street prior to the vehicle stop (See Board Review 9).

PO Villegas testified that his first observation of § 87(2)(b) s vehicle was seeing his vehicle approach the intersection and fail to make a stop at the stop sign. PO Villegas did not observe the occupants of the vehicle speak with anyone in the street prior to approaching the intersection. The officers in Sgt. Guida's vehicle, which was ahead of PO Villegas's vehicle and behind § 87(2)(b) executed the stop of § 87(2)(b) s vehicle (See Board Review 10).

§ 87(2)(g)

§ 87(2)(g)

Allegation B- Abuse of Authority: At Avenue N and East 87th Street, in Brooklyn, Sgt. Daniel Guida frisked § 87(2)(b)

Allegation F- Offensive Language: At Avenue N and East 87th Street, in Brooklyn, Sgt. Daniel Guida made remarks to § 87(2)(b) based upon race.

Allegation G- Abuse of Authority: At Avenue N and East 87th Street, in Brooklyn, Sgt. Daniel Guida threatened to arrest § 87(2)(b)

It is not in dispute that § 87(2)(b)'s vehicle was stopped by officers. § 87(2)(g)

§ 87(2)(b) testified that after he was stopped, Sgt. Guida approached him and asked him about the individual he greeted, but he denied knowing who that person was. Sgt. Guida asked § 87(2)(b) to exit his vehicle and he complied. Sgt. Guida frisked § 87(2)(b) by patting his hands over § 87(2)(b)'s arms, midsection, waistband, and pants areas. Sgt. Guida directed § 87(2)(b) to the back of his vehicle. Sgt. Guida frisked § 87(2)(b) again in the same manner, patting his hands over § 87(2)(b)'s body. § 87(2)(b) observed officers- § 87(2)(b) did not recall which specific ones- frisk § 87(2)(b) and § 87(2)(b) at the back of the vehicle. PO Courten recovered fraudulent credit cards from the vehicle. § 87(2)(b) had no knowledge about the credit cards and could not describe where in the vehicle they were located before they were discovered. § 87(2)(b) gave Sgt. Guida permission to remove his wallet from his pants pocket to see if any of his cards were fraudulent, which Sgt. Guida did. § 87(2)(b) stated that Sgt. Guida said to him, "I can say you were doing dope and get away with it, nigga," and, "I can do what I want, nigga." Sgt. Guida also threatened to take § 87(2)(b) to the stationhouse for not answering his questions about criminal activity in the neighborhood (See Board Review 4).

§ 87(2)(b) was uncooperative with the investigation by refusing to provide a statement and schedule an appointment, despite multiple contact attempts. The investigation was unable to get in contact with § 87(2)(b) who was unresponsive to multiple contact attempts. For a detailed summary of contact attempts to § 87(2)(b) and § 87(2)(b) please See Board Review 5.

Sgt. Guida testified that he approached the passenger side of the vehicle and asked § 87(2)(b) who was the front passenger, to lower his window. § 87(2)(b) replied that the window did not go down, so Sgt. Guida asked § 87(2)(b) to open his door, which he did. Sgt. Guida saw several credit cards, in plain view, scattered between the front passenger seat and the floor, and in the space between the front passenger seat and the door. Sgt. Guida observed that one of the cards had two sets of numbers, one imposed above the other, which Sgt. Guida understood was an indicator that the card was fraudulent. Sgt. Guida alerted the rest of the officers to his finding, and asked all of the occupants of the vehicle to step out and step to the back of the vehicle. Sgt. Guida

denied frisking or searching § 87(2)(b) Sgt. Guida denied frisking § 87(2)(b) or § 87(2)(b) Sgt. Guida never reached into any of § 87(2)(b)'s pockets. Sgt. Guida denied making the alleged offensive remarks or threatening to arrest § 87(2)(b) (See Board Review 6). PO Krauszer (See Board Review 7), PO Bruno (See Board Review 8), PO Courten (See Board Review 9), and PO Villegas (See Board Review 10) all testified that they did not witness Sgt. Guida frisk § 87(2)(b) threaten to arrest him, or make any of the alleged offensive remarks towards him.

§ 87(2)(g)

Allegation C- Abuse of Authority: At Avenue N and East 87th Street, in Brooklyn, an officer frisked § 87(2)(b)

Allegation D- Abuse of Authority: At Avenue N and East 87th Street, in Brooklyn, an officer frisked § 87(2)(b)

§ 87(2)(b) testified that officers whom he could not recall frisked § 87(2)(b) and § 87(2)(b) at the scene. § 87(2)(b) was uncooperative with the investigation by refusing to provide a statement and schedule an appointment, despite multiple contact attempts. Furthermore, the investigation was unable to get in contact with § 87(2)(b) who was unresponsive to multiple contact attempts. See Board Review 5 for a detailed summary of contact attempts made to § 87(2)(b).

§ 87(2)(b) and § 87(2)(b) § 87(2)(g)

Allegation H- Abuse of Authority: At Avenue N and East 87th Street, in Brooklyn, PO Ryan Courten refused to provide his name to § 87(2)(b)

Allegation I- Abuse of Authority: At Avenue N and East 87th Street, in Brooklyn, PO Matthew Krauszer refused to provide his name to § 87(2)(b)

Allegation J- Abuse of Authority: At Avenue N and East 87th Street, in Brooklyn, PO Louis Villegas refused to provide his name to § 87(2)(b)

Allegation K- Abuse of Authority: At Avenue N and East 87th Street, in Brooklyn, PO Alexis Bruno refused to provide his name to § 87(2)(b)

§ 87(2)(b) testified that when all of the officers were leaving the scene, he asked all of them for their names. Sgt. Guida interfered with § 87(2)(b)'s request and said, "Don't worry about these officers' names." Sgt. Guida told § 87(2)(b) to obtain his name only. § 87(2)(b) asked Sgt. Guida for his name and Sgt. Guida verbally provided it. None of the other officers provided their names to § 87(2)(b) (See Board Review 4).

Sgt. Guida testified that after § 87(2)(b) was arrested, § 87(2)(b) asked him for his name, and he verbally provided it to him. Sgt. Guida did not know whether § 87(2)(b) asked any other

officer for their name; Sgt. Guida denied preventing any officer from providing his name to § 87(2)(b) and he never heard any officer refuse to provide his name to § 87(2)(b) (See Board Review 6).

PO Courten (See Board Review 9), PO Krauszer (See Board Review 7), PO Villegas (See Board Review 10), and PO Bruno (See Board Review 8) all testified that they did not recall hearing § 87(2)(b) ask for their names and they all denied refusing to provide their names to him.

§ 87(2)(g)

Allegation E- Abuse of Authority: At Avenue N and East 87th Street, in Brooklyn, PO Ryan Courten searched the vehicle in which § 87(2)(b) was an occupant.

It is not in dispute that PO Courten searched § 87(2)(b)'s vehicle. § 87(2)(g)

§ 87(2)(b) testified that he voluntarily gave all of the officers at the scene permission to search his vehicle, because he was sure that there was nothing illegal inside. No officer asked him for permission to perform a vehicle search, and § 87(2)(b) gave them consent on his own. § 87(2)(b) stated that an officer- he could not describe which- entered his vehicle through the driver's side and searched it. § 87(2)(b) also gave officers permission to search the trunk of his vehicle, and officers- he could not describe which- opened the trunk and searched it. § 87(2)(b) was unable to describe how the search was performed or which specific officers performed the vehicle search because his back was against the trunk of his vehicle and he was facing away from his vehicle. § 87(2)(b) never refused to let officers search any part of his vehicle during the incident. Fraudulent credit cards belonging to § 87(2)(b) were recovered from § 87(2)(b)'s vehicle. However, § 87(2)(b) had no knowledge of the credit cards and could not describe where in his vehicle they were located before being discovered (See Board Review 4).

§ 87(2)(b) was uncooperative with the investigation by refusing to provide a statement and schedule an appointment, despite multiple contact attempts. The investigation was unable to get in contact with § 87(2)(b) who was unresponsive to multiple contact attempts. For a detailed summary of contact attempts to § 87(2)(b) and § 87(2)(b) please See Board Review 5.

PO Courten testified that as he was approaching § 87(2)(b)'s vehicle, he observed § 87(2)(b) the rear passenger, tossing objects onto the floor of the vehicle. PO Courten asked § 87(2)(b) to lower his window, which he did. PO Courten observed several credit cards on the floor of the vehicle, behind the front passenger seat, in plain view. Some of the cards that were face-up had § 87(2)(b)'s name on them, but some had the name § 87(2)(b) misspelled. Also, § 87(2)(b)'s name was double stamped on some of the cards, which according to PO Courten's training, indicated that the cards were fraudulent. Upon making this observation, PO Courten ordered all of the occupants of the vehicle out. PO Courten did not ask § 87(2)(b) for permission to search his vehicle, and PO Courten did not hear § 87(2)(b) give verbal consent for officers to search his vehicle. PO Courten searched the back seats of the vehicle by reaching underneath the seats with his hands to see if any cards fell under. PO Courten also searched the driver's side and front

passenger's side, reaching under the seats and the sides of those seats with his hands to see if there were any cards in those areas. PO Courten did not open any compartments inside the vehicle. PO Courten denied opening the trunk or searching it. § 87(2)(b) acknowledged purchasing the fraudulent cards online. § 87(2)(b) was arrested for § 87(2)(b) (See Board Review 9).

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

PO Villegas testified that he did not see § 87(2)(b) making the throwing motions, but he heard about it from PO Courten, who made the observation. PO Villegas did not recall how PO Courten searched the vehicle, since he was standing at the back focusing on watching § 87(2)(b) PO Villegas did not recall whether the trunk of the vehicle was searched during the incident (See Board Review 10).

Sgt. Guida testified that as he was approaching § 87(2)(b)'s vehicle, he observed § 87(2)(b) raise his right shoulder and reach into his pocket. § 87(2)(b) then ducked his body under the front passenger seat and threw unknown objects underneath the seat. According to Sgt. Guida's memo book entries, he observed § 87(2)(b) drop several credit cards from his pants pocket underneath the front passenger seat (See Board Review 15). Sgt. Guida approached the front passenger side and asked § 87(2)(b) to lower his window; § 87(2)(b) replied that the window does not go down. Sgt. Guida asked § 87(2)(b) to open his door and upon doing so, Sgt. Guida saw several credit cards scattered between the front passenger seat and the floor of the vehicle, as well as the space between the seat and the door. There was a gap between the seat and the floor that enabled Sgt. Guida to see the cards under the seat. Sgt. Guida saw that one of the cards had the card number double stamped on the face of the card, which Sgt. Guida understood was an indicator that the card was fraudulent. Sgt. Guida alerted PO Courten to his observation, and all of the occupants were ordered to exit the vehicle. Sgt. Guida did not recall and was unable to describe how PO Courten physically searched § 87(2)(b)'s vehicle (See Board Review 6).

PO Krauszer did not observe § 87(2)(b) making the physical motions that PO Courten observed. Upon being asked to exit the vehicle, § 87(2)(b) was arrested for possession of the fraudulent credit cards, and § 87(2)(b)'s vehicle was searched incident to a lawful arrest. PO Krauszer could not recall specifically how PO Courten performed the search of § 87(2)(b)'s vehicle (See Board Review 7).

PO Bruno did not recall whether any of the occupants of § 87(2)(b)'s vehicle made any body movements. PO Bruno also did not recall why the occupants of the vehicle were ordered to step out of the vehicle. PO Bruno did not see how PO Courten searched the vehicle and recovered the credit cards, because his attention was focused on the occupants at the back of the vehicle (See Board Review 8).

In People v. Gomez, 24 A.D.3d 276, 277 (1st Dept. 2005), the court held that upon a VTL stop for excessive window tints, in which consent to search the vehicle was granted, arresting officer's additional observations gave rise to probable cause to arrest for drug trafficking and did not exceed the scope of the consent (See Board Review 18).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegation L- Force: At the 69th Precinct stationhouse, Sgt. Daniel Guida used physical force against § 87(2)(b)

It is not in dispute that § 87(2)(b) went to the 69th Precinct stationhouse following the vehicle stop to speak with Sgt. Guida. § 87(2)(g)

§ 87(2)(b) testified that he went to the 69th Precinct stationhouse after the vehicle stop to speak with Sgt. Guida and obtain the correct spelling of his name. Sgt. Guida asked § 87(2)(b) to leave the stationhouse and pushed him on his back. § 87(2)(b) asked Sgt. Guida to stop pushing him and Sgt. Guida stopped pushing § 87(2)(b). § 87(2)(b) left the stationhouse on his own without further incident (See Board Review 4).

Sgt. Guida testified that at the stationhouse, § 87(2)(b) asked him about the status of § 87(2)(b). § 87(2)(b) Sgt. Guida replied that § 87(2)(b) was in custody, awaiting arraignment. § 87(2)(b) complained about the vehicle stop and stated that the officers had no cause to stop his vehicle. § 87(2)(b) challenged Sgt. Guida to a fight in the stationhouse parking lot. Sgt. Guida asked § 87(2)(b) to leave, and he complied. Sgt. Guida denied pushing § 87(2)(b) on his back or having physical contact with § 87(2)(b) (See Board Review 6).

Both Sgt. Michael Lindsley (See Board Review 11) and PO Briana Surko (See Board Review 12), the desk sergeant and telephone switchboard operator working at the time of the incident, did not recall witnessing this encounter.

PO Krauszer (See Board Review 7), PO Bruno (See Board Review 8), PO Courten (See Board Review 9), and PO Villegas (See Board Review 10) did not witness the stationhouse encounter.

§ 87(2)(g)

Squad: 10

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date